

TOPIC 7: Commonwealth of the Philippines

List of Reading Materials:

- 1. The 1935 Constitution**
- 2. Commonwealth Act No. 34**
- 3. Commonwealth Act No. 44**
- 4. Inauguration of the Commonwealth**
- 5. Quezon's Speech**
- 6. Quezon's Acceptance Speech**
- 7. Commonwealth Act No. 1**
- 8. Annual Report of the United States High Commissioner to the Philippine Islands**
- Commissioner to the Philippine Islands Covering the Calendar Year 1935**
- 9. Letter of President Quezon on Three-point Policy for Mindanao and Sulu**
- 10. The Significance of the Woman Suffrage Referendum**

233

Introduction to the Commonwealth of the Philippines, 1935-1946

Established through the Tydings-McDuffie Law, the Commonwealth government from 1935-1946 was designed as a transitional administration in preparation for the country's complete independence. During this period, the Filipinos were given the power and responsibility to manage their domestic affairs under the American supervision. Led by Manuel Quezon as the first President, the Commonwealth tackled the economic and social problems that beset the country during the said period.

This part of the compilation includes the 1935 Constitution which laid out the legal foundations and basic principles of the government; Quezon's speeches that mention important issues during his presidency; and key Commonwealth laws that were passed in response to the pressing needs at that time such as the National Defense Act, Eight Hour Labor Law and Women's Suffrage. Through these documents, teachers and students will have a deeper understanding on the economic and socio-political situation of the Philippines during the Commonwealth period.

234

“The 1935 Constitution” Official Gazette of the Republic of the Philippines.

One of the important provisions of Tydings McDuffie Law was the organization of

constitutional convention that would frame the fundamental laws of the country. After the Philippine Legislature accepted the Tydings McDuffie Law in 1934, delegates of the convention were also elected wherein Claro M. Recto was elected as its President.

The 1935 Constitution provided the legal foundations of the Commonwealth Government which was a ten-year transition government before the US would grant the Philippines its independence. Some of its important characteristics include: (1) a unicameral legislature through the National Assembly; (2) six-year term of the President and Vice-President without re-election; (3) bill of rights that protect the citizens and; (4) rights of suffrage by male citizens which shall be extended to women two years after the adoption of the constitution.

The 1935 Constitution was amended in 1940 which abolished the unicameral legislature and replaced by a bicameral legislative body composed of the Senate and House of Representatives.

EXCERPT:

CONSTITUTION OF THE PHILIPPINES

The Filipino people, imploring the aid of Divine Providence, in order to establish a government that shall embody their ideals, conserve and develop the patrimony of the nation, promote the general welfare, and secure to themselves and their posterity the blessings of independence under a régime of justice, liberty, and democracy, do ordain and promulgate this Constitution.

Article I.—THE NATIONAL TERRITORY

Section 1. The Philippines comprises all the territory ceded to the United States by the treaty of Paris concluded between the United States and Spain on the tenth day of December, eighteen hundred and ninety-eight, the limits of which are set forth in Article III of said treaty, together with all the islands embraced in the treaty concluded at Washington, between the United States and Spain on the seventh day of November, nineteen hundred, and in the treaty concluded between the United States and Great Britain on the second day of January, nineteen hundred and thirty, and all territory over which the present Government of the Philippine Islands exercises jurisdiction.

ARTICLE II.—DECLARATION OF PRINCIPLES

Section 1. The Philippines is a republican state. Sovereignty resides in the people and all government authority emanates from them.

Sec. 2. The defense of the State is a prime duty of government, and in the fulfillment of this duty all citizens may be required by law to render personal military or civil service.

235

Sec. 3. The Philippines renounces war as an instrument of national policy, and adopts the generally accepted principles of international law as a part of the law of the Nation.

SEC. 4. The natural right and duty of parents in the rearing of the youth for civic efficiency should receive the aid and support of the Government.

SEC. 5. The promotion of social justice to insure the well-being and economic security of all the people should be the concern of the State.

ARTICLE III.—BILL OF RIGHTS

SECTION 1. (1) No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws.

(2) Private property shall not be taken for public use without just compensation.

(3) The right of the people to be secure in their persons, houses, papers, and effects against unreasonable searches and seizures shall not be violated, and no warrants shall issue but upon probable cause, to be determined by the judge after examination under oath or affirmation of the complainant and the witnesses he may produce, and particularly describing the place to be searched, and the persons or things to be seized.

(4) The liberty of abode and of changing the same within the limits prescribed by law shall not be impaired.

(5) The privacy of communication and correspondence shall be inviolable except upon lawful order of the court or when public safety and order require otherwise.

(6) The right to form associations or societies for purposes not contrary to law shall not be abridged.

(7) No law shall be made respecting an establishment of religion, or prohibiting the free exercise thereof, and the free exercise and enjoyment of religious profession and worship, without discrimination or preference, shall forever be allowed. No religious test shall be required for the exercise of civil or political rights.

(8) No law shall be passed abridging the freedom of speech, or of the press, or the right of the people peaceably to assemble and petition the Government for redress of grievances

(9) No law granting a title of nobility shall be enacted, and no person holding any office of profit or trust shall, without the consent of the National Assembly, accept any present, emolument, office, or title of any kind whatever from any foreign state.

(10) No law impairing the obligation of contracts shall be passed.

(11) No *ex post facto* law or bill of attainder shall be enacted.

(12) No person shall be imprisoned for debt or nonpayment of a poll tax.

(13) No involuntary servitude in any form shall exist except as a punishment for crime whereof the party shall have been duly convicted.

(14) The privilege of the writ of *habeas corpus* shall not be suspended except in cases of invasion, insurrection, or rebellion, when the public safety requires it, in any of which events the same may be suspended wherever during such period the necessity for such suspension shall exist.

(15) No person shall be held to answer for a criminal offense without due process of law.

(16) All persons shall before conviction be bailable by sufficient sureties, except those charged with capital offenses when evidence of guilt is strong. Excessive bail shall not be required.

(17) In all criminal prosecutions the accused shall be presumed to be innocent until the contrary is proved, and shall enjoy the right to be heard by himself and counsel, to be informed of the nature and cause of the accusation against him, to have a speedy and public trial, to meet the witnesses face to face and to have compulsory process to secure the attendance of witnesses in his behalf.

(18) No person shall be compelled to be a witness against himself.

(19) Excessive fines shall not be imposed, nor cruel and unusual punishment inflicted.

(20) No person shall be twice put in jeopardy of punishment for the same offense. If an act is punished by a law and an ordinance, conviction or acquittal under either shall constitute a bar to another prosecution for the same act.

(21) Free access to the courts shall not be denied to any person by reason of

poverty. **ARTICLE V.—SUFFRAGE**

SECTION 1. Suffrage may be exercised by male citizens of the Philippines not otherwise disqualified by law, who are twenty-one years of age or over and are able to read and write, and who shall have resided in the Philippines for one year and in the municipality wherein they propose to vote for at least six months preceding the election. The National Assembly shall extend the right of suffrage to women, if in a plebiscite which shall be held for that purpose within two years after the adoption of this Constitution, not less than three hundred thousand women possessing the necessary qualifications shall vote affirmatively on the question.

237

Commonwealth Act No. 34

An Act to provide for the holding of a plebiscite on the question of woman suffrage

Article 5 of the 1935 Constitution states that "The National Assembly shall extend the right of suffrage to women, if in a plebiscite which shall be held for that purpose within two years after the adoption of this Constitution, not less than three hundred thousand women possessing the necessary qualifications shall vote affirmatively on the question."

In line with this, the National Assembly passed the Commonwealth Act No. 34 on September 30, 1936. This Act provided the holding of a plebiscite for women's suffrage on the following year. Commonwealth Act No. 34 mandated women who met the same voting qualification as men to participate in the said plebiscite.

On April 30, 1937, the plebiscite was held wherein 90% or 447, 725 of women voted in favor of suffrage paving the way to women's active participation in the Philippine politics.

Excerpt:

Section 1

Pursuant to the provisions of Article V of the Constitution, there shall be held a plebiscite on Friday, April thirty, nineteen hundred and thirty-seven, on the question of woman suffrage. On said date all qualified women, as hereinafter provided, may vote either in favor or against the granting of such suffrage.

Said Article V of the Constitution shall be published in the Official Gazette, in English and in Spanish, for three consecutive issues at least fifteen days prior to said election, and the said Article V shall be posted in a conspicuous place in each municipal and provincial office building and in each polling place not later than the twenty-second day of April, nineteen hundred and thirty-seven, and shall remain posted therein continually until after the termination of the plebiscite. At least ten copies of the said Article V of the Constitution, in English and in Spanish, shall be kept at each polling place available for examination by the qualified electors during the plebiscite. Whenever practicable, copies in the principal native languages as may be determined by the Secretary of the Interior, shall also be kept in each polling place.

Section 2

Every female citizen of the Philippines, twenty-one years of age, or over, who shall have been a resident of the Philippines for one year and of the municipality wherein she proposes to vote for at least six months next preceding the plebiscite and who possesses the qualifications required by existing law for male voters, but without the disqualifications therein specified, is entitled to vote in said plebiscite.

Section 8

238

The ballots to be used in the plebiscite shall be printed in English and in Spanish and shall conform to the following form:

(Commonwealth seal)

OFFICIAL BALLOT

BALOTA OFICIAL

THE QUESTION OF WOMAN SUFFRAGE is submitted in this plebiscite to the female citizens of the Philippines, in order that they may vote either in favor or against the granting of such suffrage pursuant to the provisions of Article V of the Constitution which reads as follows:

"SECTION 1. Suffrage may be exercised by male citizens of the Philippines not otherwise disqualified by law, who are twenty-one years of age or over and are able to read and write, and who shall have resided in the Philippines for one year and in the municipality wherein they propose to vote for at least six months preceding the election. The National Assembly shall extend the right of suffrage to women, if in a plebiscite which shall be held for that purpose within two years after the adoption of this Constitution, not less than three hundred thousand women possessing the necessary qualifications shall vote affirmatively on the question."

If you are in favor of woman suffrage answer "Yes," and if you are against, answer "No" in the corresponding square.

LA CUESTION DEL SUFRAGIO FEMENINO se somete en este plebiscito a las ciudadanas de Filipinas para que ellas voten, bien a favor o en contra del otorgamiento de dicho sufragio, por virtud de las disposiciones del Capitulo V de la Constitucion que se lee como sigue:

"ARTICULO 1. Podra ejercitar el sufragio todo ciudadano filipino que tenga veintiun años de edad o mas, sepa leer o escribir, haya residido en Filipinas un año, y seis meses, por lo menos, en el municipio en que se proponga votar antes de la fecha de la eleccion, y que de otro modo no este incapacitado por la ley. La Asamblea Nacional otorgara, sin embargo, a la mujer el derecho de sufragio, siempre que, en un plebiscito que se convocara al efecto, dentro de dos años despues de la adoptada esta Constitucion, trescientas mil mujeres cuando menos, que poseyeren las necesarias calificaciones, voten afirmativamente sobre la cuestion."

Si está en favor del otorgamiento de dicho sufragio, escriba la palabra "Si" en el encasillado en blanco despues de la pregunta: si está en contra, escriba la palabra "No." SECcIH Are you in favor of granting suffrage to women?

¿Está Vd. en favor de la concesion del sufragio a las mujeres?

Section 10A count of the votes cast according to the returns of the board of inspectors will be made by the National Assembly. If the result shows that not less than three hundred thousand women have voted affirmatively on the question, all women who possess the qualifications specified in section two hereof will be entitled to vote in any election which may be held thereafter. In such case, the registration list of the plebiscite may be used in any subsequent election, until revised according to law

COMMONWEALTH ACT NO.
444
EIGHT HOUR LABOR LAW

In an attempt to keep his promise during his campaign, Manuel Quezon as President of the Commonwealth government proclaimed a program of social justice in 1936. Through this program, he intended to help the Filipinos particularly the landless peasants and the exploited laborers. In response, the National Assembly enacted social justice measures aimed at the underprivileged.

From 1936-1941, the Commonwealth government enacted a number of laws for the protection of peasants and workers. One of these was the Commonwealth Act No. 444 or the Eight-Hour Labor Law which stipulates a maximum of eight working hours a day for laborers "employed in any industry or occupation, whether public or private, with the exception of farm laborer, laborers who prefer to be paid on piece work basis, domestic servants and persons in the personal service of another and members of the family of the employer working for him." The law also states that additional 25 percent of his pay should be given if the person worked on Sundays and legal holidays. The act further provided that, "In case of national emergency the Government is empowered to establish rules and regulations for the operation of the plants and factories and to determine the wages to be paid the laborers."

EXCERPT:

Section 1. The legal working day for any person employed by another shall be of not more than eight hours daily. When the work is not continuous, the time during which the laborer is not working and can leave his working place and can rest completely shall not be counted.

Section 2. This Act shall apply to all persons employed in any industry or occupation, whether public or private, with the exception of farm laborers, laborers who prefer to be paid on piece work basis, domestic servants and persons in the personal service of another and members of the family of the employer working for him.

Section 3. Work may be performed beyond eight hours a day in case of actual or impending emergencies caused by serious accidents, fire, flood, typhoon, earthquake, epidemic, or other disaster or calamity in order to prevent loss of life and property or imminent danger to public safety; or in case of urgent work to be performed on the machine, equipment, or installations in order to avoid a serious loss which the employer would otherwise suffer, or some other just cause of a similar nature; but in all such cases the laborers and employees shall be entitled to receive compensation for the overtime work performed at the same rate as their regular wages or salary, plus at least twenty-five per centum additional.

In case of national emergency the Government is empowered to establish rules and regulations for the operation of the plants and factories and to determine the wages to be paid the laborers.

Section 4. No person, firm, or corporation, business establishment or place or center of labor shall compel an employee or laborer to work during Sundays and legal holidays, unless he is paid an additional sum of at least twenty-five per centum of his regular remuneration: Provided however, That this prohibition shall not apply to public utilities performing some public service such as supplying gas, electricity, power, water, or providing means of transportation or communication.

Section 5. Exemption from the provisions of sections two, and three hereof may be granted by the Secretary of labor in the interest of the public, or if, in his opinion, such exemption is justifiable either because the organization or nature of the work requires it, or because of lack or insufficiency of competent laborers in a locality or because the relieving of laborers must be done under certain conditions, or by reason of any other exceptional circumstances or conditions of the work or industry concerned; but when such exemption is granted employees and laborers will be paid at least twenty-five per centum in addition to their regular salaries or wages for the time in excess of eight hours.

Section 6. Any agreement or contract between the employer and the laborer or employee contrary to the provisions of this Act shall be null and void ab initio.

Section 7. Any violation of this Act by the employer or person having direct control and supervision over the work shall be punished by a fine of not more than one thousand pesos, or by imprisonment for not more than one year, or both.

Section 8. Acts Numbered Forty-one hundred and twenty-three and Forty-two hundred and forty two of the former Philippine Legislature are repealed.

Section 9. This Act shall take effect upon its approval.

APPROVED: June 3, 1939.

241

Inauguration Committee. *Inauguration of the Commonwealth of the Philippines (Schedule of Events)*. Manila: Bureau of Printing. November 2-30, 1935.

Published by the Inauguration Committee of the Commonwealth of the Philippines, this document details the daily activities of the government officials and other guests of the Commonwealth inauguration from November 2 to 30, 1935. Among the most distinguished guests were Hon. George H. Dern, US Secretary of War and the personal representative of the US President, Vice President John N. Garner and Speaker Joseph Byrns. A complete list of the

Congressional and press delegations and other special guests is found in this schedule of events. It also includes a copy of the program during the inauguration of the Commonwealth of the Philippines on November 15, 1935 and the daily activities of government officials including conferences, sight-seeing and private engagements.

This document is an important primary source for students and researchers interested particularly about the history of the Commonwealth Government of the Philippines.

Excerpt:

FRIDAY, NOVEMBER 15, 1935

INAUGURATION CEREMONIES

Place: Legislative Building

The Secretary of War and the Governor-General will

drive together from Malacañan Palace to the Inauguration Ceremonies preceded by a Cavalry escort.

The President-elect will drive with his family from

his residence in Pasay to the Inauguration Ceremonies preceded by a Cavalry escort.

242

7. *10 a. m.*- Assemblage at the Legislative Building. The rear doors will be opened to Officials and distinguished Guests.

7.40 *a. m.*-Assemblage at the Grandstand.

Wives of all the Officials and distinguished Guests as well as all other persons invited to attend the Inauguration Ceremonies will occupy the places respectively assigned to them before 7.40 a. M.

7.45 a. m.-Entrance of Officials and Distinguished Guests.

8. 10 a. m.-Entrance of the Governor-General, the President-elect and the Secretary of War. 8.

1 5 a. m.:-- Inaugural Ceremonies.

Invocation by His Grace, the , Most Reverend Gabriel M. Reyes, D. D., Archbishop of Cebu.

Introduction of the Secretary of War by the Governor-General.
Address by the Secretary of War.

Reading by the Governor-General of the President's proclamation.

Administration of the Oath of Office to the President-elect by the Chief Justice of the Supreme Court.

Administration of the Oath of Office to the Vice President-elect by the Chief Justice of the Supreme Court.

Administration of the Oath of Office to the Members-elect of the National Assembly by the Chief Justice of the Supreme Court.

Declaration by the Secretary of War that the Government of the Commonwealth of the Philippines has been established.

8.45 a.m.-Inaugural Address by His Excellency Manuel L. Quezon, President of the Philippines.

243

9.00 a. m.- Recession.

Upon the conclusion of the inauguration ceremonies, the following will withdraw into the Chamber of the former House of Representatives in the following order:

The President of the Philippines .

The United States High Commissioner.

The Secretary of War of the United States.

End of the Ceremonies.

Departure of the High Commissioner under escort.

Departure of the Secretary of War under escort.

Departure of other officials and distinguished Guests who may not desire
to remain for the parade.

9.30 a. m.-Inaugural Parade:

A bugle call will be sounded to indicate

the start of the parade from Plaza Lawton.

At the proper time the President will return to the ceremonial Stand, step up on
the platform in front of the Presidential flag and review the parade.

The other Officials and distinguished Guests who may have retired into the
Chamber of the former House of Representatives may return to their
respective places in the Ceremonial Stand to watch the parade.

ORDER OF UNITS

Grand Marshall:

244

Brig. Gen. Basilio J. Valdes, Chief of the Philippine Constabulary.

Military Parade--

United States Army.

Philippine Constabulary. Philippine Coastguard Service. University of the
Philippines Corps of Cadets.

Ateneo de Manila Corps of Cadets.

San Juan de Letran Corps of Cadets.

Civic Parade

Provincial Delegations.

Manila and Baguio Delegations. Municipal Delegations.

Commercial and Industrial Units .

Labor Unions.

Miscellaneous Units.

Upon the completion of the parade, the President will proceed to Malacañan Palace preceded by a cavalry escort.

Outside the gates of Malacañan, the cavalry escort will be

relieved by the Palace Guard which will escort the President anew and precede him on his entry into the Palace.

1 2.30 p. m.-Official call on the President by:

The Vice President of the Philippines

The Speaker and Members of the National Assembly

The Chief Justice and Associate Justices of the Supreme Court.

245

The Members of the Cabinet.

Place: Malacañan Palace

4:00 p. m.-Opening session of the National Assembly.

Place: Chamber of the former House of Representatives

7.30 p. m.- Fireworks display .

Place: Manila Bay in front of the New Luneta .

8.00 p. m.- Dinner given by the President and

Mrs. Quezon in honor of the Secretary of War and Mrs. Dern. Place:

Home of President Quezon, Pasay.

9.30 p. M.- Inaugural Ball—Pageant depicting epochs, 1898-1935.

Admission by ticket , proceeds for charity.

Place: Inaugural Auditorium, Wallace Field.

246

**Quezon, Manuel. "My loyalty to my party ends where my loyalty to my country begins."
Speech delivered at the Colectivista Party Convention. Manila, Grand Opera House.
1922.**

The 1922 legislative elections was an important event in the history of Philippine politics. This is particularly because of the internal conflict that caused a split in the *Partido Nacionalista*, the ruling political party in Philippine Legislature since 1907. The conflict was mainly between the leadership of Sergio Osmeña in the House of Representatives and Manuel Quezon in the Senate.

The famous split was announced on February 17, 1922 when the newly-formed party, the *Partido Nacionalista-Colectivista* introduced Quezon as its president. It is in this party convention that Manuel Quezon delivered this speech saying that the "disagreement in the party.. is due to nothing else but a difference in opinion that grew wider as days went by." He also emphasized the importance of saving one's principles even if it means sacrificing "everything, even the party itself." The split resulted to the defeat of the Nacionalistas in the legislative elections on June 6, 1922.

This document is an important reference on Quezon's political life, on the history of the *Partido Nacionalista* and in the history of Philippine politics.